

26NWCV01396 26NWCV01396

County: los-angeles

Division: Civil Law and Motion

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MichelleShedd v. Ghost Management Group. LLC,

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This employment action was filed on April 20, 2026. Defendant Ghost Management Group, LLC's (Defendant) Motion to Compel Arbitration is scheduled to be heard on December 3, 2026. During the Case Management Conference on April 20, 2026, the Court denied Defendant's oral motion for a stay of discovery. (Order, 8/20/26.) Defendant now applies ex parte to stay discovery and related discovery deadlines. Defendant refers to Code of Civil Procedure section 1281.4 which provides: "If an application has been made to a court of competent jurisdiction...the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined."

In opposition, Plaintiff Michelle Shedd (Plaintiff) argues that (1) arbitration is barred by EFAA, (2) there is no exigency, (3) Defendant's ex parte application is an improper motion for reconsideration under Code of Civil Procedure section 1008, and (4) Defendant waived its stay argument because Plaintiff had agreed to a limited stay of discovery and Defendant breached the agreement by responding to discovery. The Court notes that it does not address and substantive arguments regarding the motion to compel arbitration on an ex parte basis.

Defendant's ex parte application to stay this action pending the motion to compel arbitration is GRANTED pursuant to Code of Civil Procedure section 1281.4. (See *Twentieth Century Fox Film Corp. v. Superior Court* (2000) 79 Cal.App.4th 188, 192 ["This statute is clear and unambiguous: it requires that the trial court stay an action pending before it while an application to arbitrate the subject matter of the action is pending in a court of competent jurisdiction."].) Accordingly, this action is STAYED pending the outcome of the hearing on December 3, 2026.

Moving party to give notice.